Current Affairs 11-11-2026

Credit - Drishti Ias

SC to Review Two-Child Norm for Panchayat Elections

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Source: IE

Why in News?

A two-judge Division Bench of the **Supreme Court of India** referred its landmark ***2003 judgement in Javed v. State of Haryana*** to a larger bench for reconsideration. The 2003 ruling had upheld the constitutional validity of state laws that **disqualified individuals with more than two children from contesting local body (Panchayat) elections .**

- Hearing the case of ***Mangala Bhimrao Ingle v. The Additional Commissioner*** **(2026),** the apex court observed that the foundational fear of "overpopulation" justifying these laws has crumbled due to shifting **demographic realities.**

What is the Two-Child Norm for Panchayat Polls?

- **Two-Child Norm:** Because **"Local Government" is a State Subject** (Entry 5, List II of the Seventh Schedule), there is no uniform national law governing qualifications for local elections.
  - Instead, several states have enacted their own legislations imposing demographic conditions:
  - States like Assam, Goa, Gujarat, Maharashtra, Odisha and Uttarakhand enacted provisions to **incentivize family planning by attaching electoral disqualifications to having more than two children.**
    - The **Maharashtra Village Panchayats Act, 1959,** explicitly disqualifies a person from being elected or continuing as a **Gram Panchayat member** if they have a third child after the law's cut-off date.
  - **K. Karunakaran Committee on Population (1992–1993)** recommended enacting central legislation to disqualify individuals with more than two children from holding any elected post, spanning from Gram Panchayats up to Parliament However, no corresponding central law was enacted.
- **Statutory Exceptions:** Under Maharashtra's law, adopted children are excluded from the definition of children, while multiple births are subject to specific counting rules. Exceptions vary across state legislatures.
- **The 2003 Precedent (*Javed v. State of Haryana*):** The Supreme Court upheld the **Haryana Panchayati Raj Act, 1994** , which disqualified candidates with more than two children from contesting local body elections.

- **Statutory, Not Fundamental Right:** The Court ruled that the right to contest elections is purely statutory and can be regulated by legislative conditions.
- **Reasonable Classification (Article 14):** The two-child disqualification was deemed constitutionally valid as it had a clear, rational nexus with national family planning and socio-economic welfare goals.
- **Secular Law vs. Freedom of Religion (Article 25):** Rejecting arguments that the law violated religious freedoms (such as personal laws permitting polygamy), the Court established that non-mandatory personal laws must yield to secular, social welfare legislation.

Why is the Supreme Court Reconsidering the 2003 Judgement on Two-Child Norm for Panchayat Polls?

- **Changing Constitutional Reasonableness:** The Supreme Court invoked the principle of ***cessante ratione cessat ipsa lex*** (when the reason for a law ceases, the law itself ceases), noting that constitutional justifications must remain connected to contemporary facts.
- **Declining Total Fertility Rate (TFR):** India's TFR declined from 3.0 around the time of the Javed ruling (2003) to 1.9, according to the Sample Registration System Statistical Report 2024 **, below the replacement level of approximately 2.1 children per woman.**
  - The Court questioned whether concerns over a population explosion continue to justify restrictions on political participation, particularly when demographic circumstances have substantially changed.
- **Infringement of Article 21 (Reproductive Autonomy):** The SC noted that deciding whether, when, and how many children to have is a deeply intimate choice.
  - Forcing a citizen into an "unconscionable choice" between exercising their reproductive autonomy and participating in **democratic governance severely compromises Article 21.**
- **Gender Justice and Substantive Equality:** The 2003 ruling assumed the law applied equally to men and women.
  - The current bench highlighted the disproportionate burden on women. In **India's patriarchal society, women often lack agency over reproductive decisions.** The norm has inadvertently fueled desertion of pregnant wives, forced sex-selective abortions (female foeticide), and denial of paternity.
- **No Nexus with Administrative Capability:** The Court questioned the rational connection between family size and the ability to discharge public duties, observing that the restriction excludes an entire class of citizens from political representation without establishing their administrative incompetence.
  - The Court questioned the prejudice of applying demographic disqualifications exclusively to grassroots representatives **(Panchayati Raj Institutions) while sparing Members of Parliament (MPs) and Members of Legislative Assemblies (MLAs)** , raising concerns under Article 14.

Way Forward

- **Transition from Coercion to Welfare:** As established by the **National Population Policy 2000** and India's commitments at the **1994 Cairo International Conference on Population and Development (ICPD)** , Population stabilization must remain strictly voluntary, eliminating coercive electoral disincentives that infringe upon reproductive autonomy.
- **Shift from Fertility Reduction to Demographic Balance:** State policies must pivot from outdated population control metrics to sustaining the demographic dividend.

- Investments should focus on **equitable socio-economic development, maternal healthcare, and human capital formation** to maintain **demographic stability** , thereby avoiding the severe demographic winter currently crippling several East Asian and European economies.

- **Learning from Global Examples:** Restrictive demographic policies (such as China's One-Child Policy) have led to **severe socio-economic crises and an aging population, forcing a reversal of the policy.**
- **Uniformity in Law:** The larger bench of the SC must comprehensively settle the constitutional question, ensuring that grassroots democracy is not compromised by outdated demographic assumptions.

Conclusion

The Supreme Court's review of the *Javed* judgment marks a vital shift from coercive population control to rights-based constitutional morality. With India's fertility below replacement levels, electoral jurisprudence must prioritize women's reproductive autonomy (Article 21) over outdated demographic anxieties.

> ***Drishti Mains Question:***
>
> How should constitutional morality guide the state when public policy objectives conflict with individual liberty, gender justice and democratic participation?

Frequently Asked Questions (FAQs)

1. What was the Supreme Court's ruling in Javed v. State of Haryana (2003)?
The Supreme Court upheld the Haryana Panchayati Raj Act, 1994, which disqualified individuals having more than two living children from contesting Panchayat elections, considering it a reasonable measure to promote family planning.

2. Why has the Supreme Court referred the two-child norm to a larger bench in 2026?
In Mangala Bhimrao Ingle v. Additional Commissioner (2026), the Court observed that India's TFR has declined from around 3.0 to 1.9, questioning the continuing relevance and constitutional justification of population-based electoral disqualifications.

3. Which states have introduced the two-child norm for local body elections?
States including Rajasthan, Maharashtra, Odisha, Andhra Pradesh and Madhya Pradesh have introduced variations of the two-child disqualification through state legislation.

4. What is India's replacement fertility rate, and why is it significant?
The replacement-level fertility rate is approximately 2.1 children per woman. India's TFR of 1.9 is below this level, indicating a transition towards lower fertility and potential long-term population ageing.

[Watch Video on YouTube: ▶ https://www.youtube.com/embed/9ez6tkDdbwM]

UPSC Civil Services Examination, Previous Year Question (PYQ)

Prelims :

Q. To obtain full benefits of demographic dividend, what should India do? (2013)

(a) Promoting skill development

(b) Introducing more social security schemes

(c) Reducing infant mortality rate

(d) Privatization of higher education

Ans: (a)

Mains:

Q. “Demographic Dividend in India will remain only theoretical unless our manpower becomes more educated, aware, skilled and creative.” What measures have been taken by the government to enhance the capacity of our population to be more productive and employable? **(2016)**

Q. “While we flaunt India’s demographic dividend, we ignore the dropping rates of employability.” What are we missing while doing so? Where will the jobs that India desperately needs come from? Explain. **(2014)**

India's Safe Harbour Provision under Scrutiny

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Source: IE

The Indian government has initiated preliminary discussions to re-evaluate the Safe Harbour granted to social media platforms regarding user-generated content, particularly as their algorithms increasingly influence content visibility and reach.

- **Triggers for the Review:**
  - **Digital Arrest Scams:** The **Indian Cyber Crime Coordination Centre (I4C)** raised concerns over intermediary liability for misuse of platforms, including the possibility of a victim-compensation mechanism.
  - **Content Moderation Clashes:** Incidents like Facebook temporarily withholding a video posted by the Prime Minister led to parliamentary and ministerial scrutiny over accountability.
  - **Algorithmic Amplification** : Unlike passive intermediaries, social media platforms use recommendation algorithms to prioritise, promote and amplify content, raising questions about their neutrality and eligibility for legal immunity.

- **Child Safety:** The Supreme Court raised questions about the adequacy of Section 79 concerning online **child sexual abuse material** **,** favouring proportionate penalties while treating withdrawal of safe harbour as an exceptional measure.

- **Concerns for Free Speech:** Digital rights organizations note that removing safe harbour would lead to a **"chilling effect."**
  - Fearing legal liability, platforms might excessively censor or remove content such as criticism, reporting, or satire simply to minimize legal risks, undermining citizens' freedom of speech under **Article 19(1)(a).**

The Principle of Safe Harbour

- **Safe Harbour:** **Section 79 of the Information Technology (IT) Act, 2000,** shields passive intermediaries (such as social media platforms, internet service providers, and online marketplaces) from legal liability for user-generated content.
- **Conditions for Immunity:** The platform must act as a neutral facilitator rather than initiating, selecting, or modifying the content.
  - It must observe **due diligence rules** , including the **IT Rules, 2021,** which require appointing **India-based compliance officers** (Chief Compliance Officer, Nodal Contact Person, and Grievance Officer) and publishing monthly compliance reports.
  - It must expeditiously remove or disable access to unlawful content upon receiving "actual knowledge" or a formal court/government order.
- **Loss of Protection** : Under Section 79(3)(b), immunity is withdrawn if intermediaries fail to promptly remove unlawful content after valid government notification.
  - Under the IT Amendment Rules, 2026, intermediaries that **knowingly permit, promote, or fail to act on violative synthetic content will be deemed to have failed "due diligence."**
  - In ***Shreya Singhal v. Union of India (2015),*** the Supreme Court held that takedown obligations under Section 79(3)(b) require a court order or authorised government notification **, not private complaints alone.**
- **Distinction from Section 69A:** While Section 79(3)(b) deals with general notice-and-takedown for specific unlawful acts, **formal content-blocking orders on broader constitutional grounds (Article 19(2))** are typically governed by **Section 69A of the IT Act, which involves reasoned orders and a review committee.**
- **Takedown Timelines:** Under the **IT Amendment Rules, 2026,** takedown timelines have been tightened to 3 hours for unlawful content (reduced from 24–36 hours) and 2 hours for sensitive content, such as non-consensual nudity and deepfakes, increasing compliance pressure on platforms to retain safe harbour protection.

Read more: **Safe Harbour Provision for Social Media**

Semicon 2.0 Web Application Portal & ECMS Approvals

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Source: PIB

The Union Government has launched the **Semicon 2.0 – Web Application Portal under the Semicon India Programme for Pillars 2, 3 and 4** and approved 12 new domestic manufacturing projects under the **Electronics Components Manufacturing Scheme (ECMS).**

- **Semicon 2.0:** In July 2026, the Union Cabinet approved **Semicon 2.0** under the **India Semiconductor Mission 2.0** with a Rs 1,27,500 crore outlay.
  - The Semicon 2.0 targets comprehensive ecosystem development through six pillars: **Design of Chips, Machines and Materials, Setting up More Fabs, Further Strengthening the ATMP/OSAT Industry, Research & Development, and Talent Development.**
  - Applications are now open for Pillar 2 (Machines and Materials), Pillar 3 (Setting up More Fabs) and Pillar 4 (Strengthening ATMP/OSAT).
- **Success of Phase 1:** Under Semicon 1.0, 12 projects across six states generated an investment of over Rs 1.64 lakh crore.
  - Furthermore, the **Chips to Startup (C2S) Programme** successfully trained 70,000 students and **provided EDA (Electronic Design Automation) tools to 332 institutions and 105 startups.**
- **ECMS Expansion:** The Ministry of Electronics and Information Technology (MeitY) approved 12 new applications under **ECMS,** bringing the total approved ECMS projects to 118 across 16 states.
  - Emphasizing inclusive industrial growth, **nearly 50% of the units approved under the ECMS belong to the MSME sector** .
- **Target Segments Covered:** The latest approvals focus on highly specialized inputs that are currently heavily imported:
  - **Components:** Multi-layer PCBs, Relays, Heat Sinks, and Specialty Ceramics.
  - **Supply Chain Products:** Copper Foil (crucial for PCBs and Li-ion cells), Anode/Cathode Materials, Polypropylene Film, and Camera Rims.
  - **Capital Goods:** Precision moulds and tooling, power and control systems, and factory automation equipment.
- **Strategic Objectives:** The overarching goal is to transition India's electronics sector **from downstream assembly to a comprehensive domestic value chain** , attracting at least three major global equipment manufacturers and five chemical/gas companies to realize the vision of **Atmanirbhar Bharat** .

Electronics Components Manufacturing Scheme (ECMS)



A key scheme to build a **self-reliant** electronics component ecosystem and integrate India with Global Value Chains (GVCs).

Key Facts

Launched
April 2025

Nodal Ministry
Ministry of Electronics and Information Technology (MeitY)

Objective
Build a self-sustaining electronics component ecosystem and attract domestic and global investment across the value chain.

Incentive Structure

- Provides **turnover-linked, capex-linked,** or **hybrid** fiscal incentives.
- A portion of both turnover and capex incentives is linked to **employment generation.**

Incentives are allotted on a **first-come, first-served basis** to firms ready for early production.

Tenure

- **Six-year** tenure overall.
- **One-year** gestation period for the Turnover Linked Incentive (TLI).
- **Capex** Incentive available for **five years.**

Target Segments

Focuses on components and sub-assemblies that together account for **nearly 90%** of the Bill of Materials (BoM) for mobile phones.



Sub-assemblies
Camera modules and display units



Bare Components
Multi-layer PCBs, capacitors and resistors



Capital Equipment
Equipment used in electronics factories

Overall Impact

- Total approved ECMS applications: **118**
- Coverage: **16 states**
- Investments secured: Over **₹77,000 crore**

Synergy with ISM 2.0

Acts as a horizontal enabler, working alongside the **India Semiconductor Mission (ISM) 2.0** to build a comprehensive ecosystem covering materials, equipment and advanced packaging.

Read more: Cabinet Approves Semicon 2.0

- Electronics Components Manufacturing Scheme

Exercise Tiger Triumph 2026

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Source: PIB

The **fifth edition of Exercise Tiger Triumph 2026** , a bilateral **Tri-Service Humanitarian Assistance and Disaster Relief (HADR) exercise** between India and the United States, concluded at **Visakhapatnam, Andhra Pradesh** .

- **About:** A bilateral tri-service exercise involving the **Army, Navy and Air Force of India and the United States** , aimed at strengthening coordination and interoperability in joint HADR operations.
- **First Edition:** The exercise was **first conducted in 2019** to strengthen bilateral defence cooperation and joint disaster response capabilities.
- **Major Components:** The 2026 edition comprised:
  - **Staff Exercise (STAFFEX):** Focused on operational planning, academic lectures and Subject Matter Expert Exchanges (SMEEs) covering areas such as **cyberspace and medical operations** .
  - **Tabletop Exercise (TTX):** Applied joint operational plans in simulated scenarios to identify coordination challenges and improve **combined HADR responses** .
- **Amphibious Operations:** The exercise emphasised **planning and coordination for joint amphibious HADR operations** , integrating maritime and land-based disaster response capabilities.
- **First-Time NDRF Participation:** India's **National Disaster Response Force (NDRF)** participated for the first time, strengthening **civil-military coordination** in disaster response operations.
- **Key Objectives:** Enhance **interoperability, joint operational planning, information-sharing and mutual understanding** between the armed forces of both countries.
- **Strategic Significance:** Reinforces the **India–US defence partnership** and their shared commitment to **peace, stability and security in the Indo-Pacific region** .

Read More: **India–US Exercise Tiger Triumph 2026 Commences in Visakhapatnam**